

URGENT

By e-Mail

**GOVERNMENT OF ODISHA
REVENUE AND DISASTER MANAGEMENT DEPARTMENT**

No. RDM-LAA-MISC-0003-2024- **45460** /R&DM dated **02 DEC 2025**

From

Shri Deoranjana Kumar Singh, IAS
Additional Chief Secretary to Government,
Revenue & DM Department.

To

All Collectors
MD, IDCO, Bhubaneswar

**Sub: Streamlining Land Acquisition Process at District level for timely
completion of Land Acquisition in various projects in the State.**

Madam/Sir,

You are aware that the Government undertakes land acquisition for well-defined public purposes, including major infrastructure development projects such as roads, railways, dams, airports, industrial corridors, and other social infrastructures. Timely completion of land acquisition is critical, as delays in adhering to the prescribed processes may lead to procedural complications, delay in project execution, and escalation of project costs. The RFCTLARR Act, 2013, along with other applicable land acquisition laws, prescribes fixed timelines for various stages of the land acquisition process.

During review of various ongoing land acquisition proceedings under RFCTLARR Act, 2013, the following recurring deficiencies have been observed which result in undue delay in Land Acquisition Processes. To ensure smooth, efficient, and time-bound completion of land acquisition proceedings all District-level authorities and Requiring Bodies are hereby instructed to strictly comply with the following directions mentioned against each observation, without any deviation.



Deficiencies Observed	Instructions to be Followed
1.Filing of Land Acquisition Proposals in piecemeal manner and Administrative Approval by the Administrative Department	
1.1. Administrative approval and submission of Form-A proposals by Requiring Departments/Bodies are frequently done in a piecemeal manner. Instances have been observed where multiple proposals are filed for the same project within a single village on different dates, instead of submitting a consolidated proposal for each village. This fragmented approach significantly delays the acquisition process. 1.2. LA proposals are often filed under incorrect sub-sections of Section 2 of the RFCTLARR Act, 2013. In several cases, proposals for different villages under the same project are filed under different sub-sections e.g., one under Section 2(1) and another under Section 2(2) resulting in subsequent requests for modification, thereby causing avoidable delays.	1.1. Requiring Bodies shall submit one consolidated Form-A proposal for each village pertaining to a particular project. Fragmented or piecemeal proposals for the same village shall not be entertained. If required, a certificate may be obtained from the Requiring Body that no further requisition will be filed in respect of the village for the same project. 1.2. LA proposals without administrative approval and Detail Project Report shall not be entertained. 1.3. The Requiring Bodies shall ensure that the proposal is filed under the correct and applicable sub-section of Section 2 of the RFCTLARR Act, 2013 strictly in accordance with the instructions prescribed by the Department vide letter no. 28866/R&DM Dtd.02.08.2025.
2.Discrepancies in Land Particulars	
Land particulars submitted by the Requiring Bodies in Form-A are	2.1. Land Acquisition Officers shall meticulously verify the land particulars

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not being adequately verified by the Land Acquisition Officers (LAOs) while recommending for notification under Section 4(1) for SIA study. Instances of mismatch between land particulars furnished by the Requiring Authority and those verified by LAOs have been noted, resulting in procedural delays.	submitted in Form-A with the RoR, land schedule, village map, trace map and field verification records. 2.2. No proposal for notification under Section 4(1) shall be forwarded unless the land particulars fully tally with the verified records along with certified copies of the RoR.
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3. Deficiencies in Proposals under Section 8(2) for PPP Projects and Private Companies

Proposals for issuing declaration under Section 8(2) are often submitted without the mandatory consent certificates i.e., 70% consent for Public Private Partnership (PPP) projects and 80% consent for private company projects as required under the RFCTLARR Act, 2013.	3.1. For proposals under Section 8(2), the LAO shall not process the matter unless accompanied by consent certificates of at least 70% and 80% of affected families in the case of PPP projects and private company projects respectively. 3.2. The consent certificates shall be submitted, duly verified, and authenticated by the LAO.
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4. Proposals for Declaration under Section 19(1) without Fund Availability Certificates

Proposals for issuing declaration under Section 19(1), in some cases, are accompanied only by certificates relating to availability of establishment cost, instead of the certificate on the availability of funds for payment of land	4.1. Proposals for declaration under Section 19(1) shall be accompanied by a fund availability certificate specifically indicating provision of funds for payment of land compensation and R&R entitlements, not merely establishment or administrative cost.
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acquisition compensation. This constitutes a procedural deficiency.	4.2. Proposals lacking proper certification shall be processed only after submission of the requisite documents.
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5. Extension of Validity of Proceedings under Sections 14, 19, and 25

The RFCTLARR Act mandates completion of various stages within the stipulated period of 12 months, extendable by the Appropriate Government only upon the existence of justifiable circumstances. Several proposals for extension lack adequate justification. Reasons such as non-receipt of land acquisition cost from the Requiring Authority cannot be considered valid grounds for extension under Section 19(1).	5.1. Any request for extension of the statutory validity period shall contain clear, detailed, and legally sustainable justifications, supported by documentary evidence. 5.2. Grounds such as non-receipt of funds from the Requiring Body, administrative delay, or procedural lapses by field officers shall not be accepted as justification for extension.
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6. Incomplete Proposals Without Mandatory Documents

Many proposals are submitted without enclosing all necessary documents resulting in repeated correspondence and delay.	All proposals shall be submitted with requisite documents strictly in accordance with the checklist prescribed by the Department vide letter no. 3918/R&DM Dtd. 30.01.2018.
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7. Period for Completion of Publications in All Modes

In many LA Cases, publication of notification u/s 11(1) and declaration 19(1) in the Official Gazette and two daily newspapers circulated in the locality are not being published within the	Ensure publication of Notification u/s 11(1) and declaration u/s 19(1) in the Official Gazette and two daily newspapers circulated in the locality within the mandatory period of 30 days as prescribed under Rule 19 of the
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mandatory period of 30 days as prescribed under Rule 19 of the ORFCTLAR&R Rules,2016, sometimes published beyond 6 months from the date of issue of notification and declaration by the Appropriate Government, resulting in procedural delays.	ORFCTLAR&R Rules,2016 and uploaded in the official website of the Appropriate Government and LARRMS portal.
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8. Reference to LAR&R Authority u/s 64

The references made by the Collectors to the Authority are not accompanied with copy of sufficiently served notices u/s 21 to the persons interested, grounds of objection and other related documents resulting delays in disposal by the Authority.	Ensure submission of required information and documents as prescribed u/s 65 along with the particulars of notices served upon and the statement in writing by the person interested while making a reference to the Authority.
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If the above deficiencies are properly addressed at each stage of land acquisition proceedings, the process of land acquisition can be completed prior to the maximum prescribed period of 12 months between notification u/s 11(1) to declaration u/s 19(1) and the prescribed period of 12 months between declaration u/s 19(1) to land acquisition award u/s 23.

District Collectors shall closely monitor each stage of land acquisition to ensure adherence to statutory timelines and procedural requirements. All concerned officers shall ensure strict, timely, and complete compliance with the above instructions. Any lapse or deviation shall be treated as personal responsibility of the officer concerned.

Yours faithfully,


02/12/2025

Additional Chief Secretary to Government

Memo No. 45461 / R&DM,

Date 02 DEC 2025

Copy forwarded to all Departments of Government/all RDCs for information and necessary action.

Additional Secretary to Government

Memo No. 45462 / R&DM,

Date 02 DEC 2025

Copy forwarded to all LAOs/ all Special LAOs for information and necessary action.

Additional Secretary to Government

Memo No. 45463 / R&DM,

Date 02 DEC 2025

Copy forwarded to NCDS, Bhubaneswar /LA-B Branch/LA-C Branch of this department for information and necessary action.

Additional Secretary to Government